

August 7, 2025

Request for Joinder - Case 29534/ICA3
ICC International Court of Arbitration
ICC Secretariat

Re: Case No. 29534/ICA3 – Claimant’s Request for Joinder of Additional Respondent under Article 7 ICC Rules.

Pursuant to Article 7(1) of the ICC Rules, we hereby respectfully request the joinder of Invictus Holding IC GmbH as *third* respondent in these arbitration proceedings.

Parties:

The Parties are consequently as follows:

Claimant: Elcomponics Holdings B.V. (“Elcomponics” or “Claimant”)

Elcomponics is a private limited liability company duly incorporated and existing under the laws of the Netherlands, registered with the Dutch Trade Register at the Chamber of Commerce (Kamer van Koophandel – KvK) under the registration number KVK 886186868. Elcomponics is a wholly owned subsidiary of Elcomponics Sales Private Limited, a company incorporated under the laws of India. Claimant’s registered office address is Bavincklaan 7, Amstelveen 1183AT, The Netherlands.

Claimant is represented by Dr. Harish Narasappa and Luthra and Luthra Law Offices India, the latter represented by Mr. Sudipta Routh, Ms. Pooja Dadoo, Ms. Malika Nanduru and Mr. Advait Balekundri. Communication is to be directed to:

Address: A 20th Floor, Tower 2, Unit A2, One International Centre (formerly Indiabulls Finance Centre), Elphinstone Road, Senapati Bapat Marg, Lower Parel, Mumbai - 400013, India.

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Respondent 1: Invictus GmbH (“Invictus” or “Respondent 1”)

Invictus is a limited liability company duly incorporated and existing under the laws of Austria, registered with the Austrian Companies Register under the register number FN 286666v, with its registered seat at Industriegebiet 1, 7011 Siegendorf, Austria.

Respondent 2: Invictus Cable GmbH (“Invictus Cable” or “Respondent 2”)

Invictus Cable is a limited liability company duly incorporated and existing under the laws of Austria, registered with the Austrian Companies Register under the register number FN 515573x, with its

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registered seat at Industriegebiet 1, 7011 Siegendorf, Austria. Invictus Cable is a subsidiary of Respondent 1.

Respondent 1 and Respondent 2 (together “*Respondents*”) are represented by Baker McKenzie Rechtsanwälte LLP & Co KG within these arbitration proceedings. Communication is to be directed to:

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Respondent 3 herewith to be joined: **Invictus Holding IC GmbH** (“*Invictus Holding*” or “*Respondent 3*”).

Invictus Cable is a limited liability company incorporated and existing under the laws of Austria, registered with the Austrian Companies Register under the register number FN 650783i, with its registered seat at Industriegebiet 1, 7011 Siegendorf, Austria.

Background:

With their Answer to the Request for Arbitration dated 4 August 2025, Respondents 1 and 2 submitted that by means of the Demerger and Acquisition Agreement (*Spaltungs- und Übernahmevertrag*) dated 27 March 2025, Invictus demerged among others the business unit relating to Invictus Cable including its share of 74% into Invictus Holding effective as of 1 July 2024. They argue that Invictus transferred the business unit related to Invictus Cable including its share of 74% to Invictus Holding, all shareholder-related rights and obligations were transferred to this new entity and that Invictus Holding consequently holds 74% of the shares in Invictus Cable.

Not only is the effective date of the restructuring set at merely twelve days of the Exit Notice issued by Claimant on 19 June 2024: **neither Respondent 1, nor Respondent 2 have ever informed Claimant of the demerger.** While this process obviously initiated more than a year ago, this restructuring was **undertaken without any notice to Claimant and in fact concealed for months.** In particular, the demerger, was executed without notice and in breach of Clause 4.6(c) of the Shareholders’ Agreement dated 24 March 2023 (the subject matter of the arbitration), which prohibits any transfer of rights or obligations to affiliates unless the transferee is demonstrably solvent and the transfer has been disclosed to and approved by the non-transferring shareholder. These requirements were wholly ignored. This is not only a clear violation of Respondent 1’s obligations explicitly incorporated into the Shareholders’ Agreement (“*SHA*”), it demonstrates bad faith of Respondents.

The demerger, including having interposed a shell company, as well as the pleading that Invictus GmbH ceased to be a shareholder and would bear no responsibility under the SHA, constitutes respondents' clear strategy of evading liability and adds up to their dismissal of all claims, requesting the tribunal to "decline jurisdiction" and "dismiss Claimant's claims in their entirety". The respondents' concurrent challenges to jurisdiction and demands for Austrian law application become transparent when viewed alongside this Austrian demerger contrivance. Given their pattern of non-disclosure and procedural manoeuvring, reasonable grounds exist to suspect that other assets have been transferred, or liabilities restructured without notice. The timing and belated disclosure of this restructuring raises serious concerns about evasion of contractual obligations.

Basis for Joinder:

As per Respondents' assertions in their Answer to the Request for Arbitration, the demerger agreement transferred all Shareholders Agreement obligations to Invictus Holding IC GmbH through universal succession ("*Gesamtrechtsnachfolge*"). Respondents dispute the jurisdiction and argue that Claimant has no standing to sue Invictus due to this transfer, showing that pursuant to Respondents' themselves Claimant has standing to sue Invictus Holding. As noted below, it is indeed also Invictus Holding to which liability for claims introduced towards Respondent 1 is extended to. Due to the introduced demerger, it is hence necessary to include Invictus Holding as (further) Respondent into the present proceedings.

As noted above, Respondent 1 breached Clause 4.6(c) of the SHA. Joinder of Invictus Holding is prima facie contractually compelled under these provisions to prevent Clause 4.6(c) from being rendered illusory by strategic non-compliance.

Based on the demerger, Invictus Holding is bound by the arbitration clause incorporated into the SHA and which the present arbitration proceedings are based on (cf below). Clause 10.3.2 of the demerger agreement also states that "all contractual and legal relationships, in particular receivables and claims, including claims for damages, of Invictus GmbH arising from the SHARE SALE AND TRANSFER DEED with ELCOMPONICS HOLDINGS B.V. dated June 7, 2022, the SHAREHOLDERS AGREEMENT with ELCOMPONICS HOLDINGS B.V. dated June 7, 2022 [*Sic*] and the COMPLETION MEMORANDUM dated 24.03.2023" transfer to Invictus Holding IC GmbH.

Respondents' omit to mention that due to the demerger, both Invictus and Invictus Holding are liable to Claimant. In other words, Invictus is not released of its liability towards Claimant, to the contrary: Invictus is jointly liable together with and alongside Invictus Holding for the liabilities incurred up to the date of registration of the demerger (Sec 15 Austrian SpaltG). Consequently, Invictus's attempt to manipulate corporate structures to evade liability by shifting obligations between entities and avoiding liability by purporting that the demerger transferred all liability to Invictus Holding must fail.

Arbitration Agreement

The Arbitration Agreement governing this dispute appears in Clause 10.2 of the SHA, which provides for ICC arbitration under a sole arbitrator seated in Paris. The Arbitration Agreement stipulates as follows:

If the Dispute is not resolved amicably, the Dispute shall be referred to and finally resolved by binding arbitration in accordance with the ICC Rules of the International Chamber of Commerce. The seat of arbitration shall be Paris and the number of arbitrators shall be 1 (one). The language of arbitration shall be English.

Clause 10.8 of the SHA affirms that the agreement is binding upon and inures to the benefit of each party and its respective successors and permitted assigns. This arbitration agreement binds all original parties and their legal successors and based on Respondents' own pleading, Invictus Holding is a universal successor of Invictus and as such it is bound by the arbitration agreement as well. The Tribunal appointed under the ICC Rules has jurisdiction over both Invictus (as demerging company) and Invictus Holding (as the successor).

In addition, agreements on jurisdiction and arbitration clauses also apply to the other companies liable as joint and several debtors pursuant to Section 15 (1) Austrian SpaltG (see *Brix in Straube/Ratka/Rauter*, WK GmbHG § 15 SpaltG para 24; OLG Wien 4 R 108/06s).

Request to the ICC Court

For the reasons above, we respectfully request that Invictus Holding IC GmbH be joined as Respondent 3 to the present proceedings. All reliefs presently prayed for against Respondent 1, including monetary and declaratory reliefs arising from or connected to the Shareholders Agreement be deemed to be sought jointly and severally against Respondent no. 1 and/or Respondent no. 3.

Further, given Respondents' pattern of concealment and the financial irregularities underlying this arbitration, Claimant reserves the right to seek joinder of additional entities within the Invictus corporate structure as further asset and / or liability transfers come to light. Given the Respondents' persistent withholding of material facts, Claimant expressly reserves the right to seek joinder of any further entities shown to have received transferred assets or obligations, with a view to preserving the enforceability of any eventual award under Article 7 and Article 22 of the ICC Rules.

Yours faithfully,



Sudipta Routh
Partner
Luthra and Luthra Law Offices India

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Via ICC Case Connect and email